



**Tribunals Ontario**  
Landlord and Tenant Board

## Practice Direction on Motions to Assign a New Member Due to Delay

(Disponible en Français)

*This Practice Direction provides guidance on motions made to the Landlord and Tenant Board (LTB) seeking an order to have a proceeding reassigned to a different member in accordance with s. 4.4 of the Statutory Powers Procedure Act.*

A landlord, tenant, or another party to a proceeding at the Landlord and Tenant Board (LTB) may only make a motion asking the LTB Chair to assign another Member to complete a hearing or make a decision where the original Member:

1. dies, is, or for any other reason appears to be unable to complete a hearing or to make a decision; or,
2. has not completed the hearing or made a decision by a deadline previously specified by the LTB Chair.

This type of motion cannot be used to request that a new Member be assigned for any other reasons. If a matter has been adjourned and a party wants the next hearing to be expedited, a [Request to Shorten Time](#) should be made.

As stated in [LTB Rule of Procedure 27](#), before making this type of motion, the party must first ask the LTB about the status of the hearing or decision. The inquiry should be made by email to [LTB@ontario.ca](mailto:LTB@ontario.ca). Your email subject line must include your file number.

The LTB will not accept the motion until at least **90 days** have passed since the last hearing date or the last deadline for written submissions. If further hearings dates are scheduled or expected to be scheduled the LTB will not accept the motion.

If all these conditions are met, the motion should be made using the [Request to Assign a New Member form](#). The motion should then be uploaded directly into TOP and 'Motion for Assignment of New Member' selected from the dropdown menu. Please review the [instructions on how to complete the Request to Assign a New Member form](#).

The LTB will normally decide the motion without a hearing and without asking other parties for submissions.

The LTB Chair may assign authority to consider the motion to another LTB Member.

The LTB Chair may also assign the proceeding to another Member to complete the hearing or make a decision without a motion made by a party.

## Factors to be considered on the motion

In deciding the motion, the LTB may consider the following factors:

1. Whether the party making the motion has previously made an inquiry at the LTB about the status of the proceeding;
2. The length of the delay in the completion of the proceeding;
3. The reasons for the delay in the completion of the proceeding;
4. The expected date the original Member will be able to complete the hearing or make a decision;
5. The complexity and urgency of the issues in the proceeding;
6. The LTB's available resources; and
7. Any other relevant factor.

## Authority of the new Member

If the motion is granted, the new LTB Member assigned the proceeding may:

1. Make a decision on the basis of the existing evidentiary record, including any recording of the hearing, if the hearing has been completed;
2. Rehear some or all of the proceeding;
3. Continue the hearing if the hearing has not been completed;
4. During or after the hearing, recall a witness or require further evidence; and
5. Provide the parties with an opportunity to make submissions about how the new Member should exercise this authority.

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